

26STCV17591 26STCV17591

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Case Number: 26STCV17591 Hearing Date: August 27, 2026 Dept: 14

SUPERIOR COURT OF THE STATE OF
CALIFORNIA¿¿

FOR THE COUNTY OF LOS ANGELES

DEPARTMENT 14¿

¿

CAROLE E. GORDON,

Plaintiff,¿

v.

ALTICOR INC., et al.,

¿

Defendants.¿¿

Case No. 26STCV17591

¿¿¿¿

Hearing Date: August 27, 2026

Time:

9:00 a.m.

¿ [TENTATIVE] ORDER

RE:¿

SPECIALY APPEARING DEFENDANT COSMETIC
SPECIALTIES, INC.'S MOTION TO QUASH PLAINTIFF'S SERVICE OF SUMMONS & COMPLAINT
FOR LACK OF PERSONAL JURISDICTION

I.

Background

On June 4, 2026, Plaintiff Carole E. Gordon filed her complaint for personal injury alleging she developed malignant mesothelioma (with sarcomatoid features) from non-occupational exposure to asbestos and asbestos-containing cosmetic products.

On July 31, 2026, Defendant Cosmetic Specialties, Inc. ("Defendant" or "CSI") filed the operative motions to quash Ms. Gordon's service of summons and complaint, arguing that the court lacks personal jurisdiction over CSI because Defendant did not purposefully avail itself of California and Ms. Gordon failed to establish that the allegations in her complaint arise out of or relate to CSI's contacts with the state.

On August 14, 2026, Ms. Gordon opposed, arguing that CSI purposefully availed itself of California's benefits by conducting business in the state supplying talcum powder for cosmetics (i.e. Merle Norman sheer face power) from a Long Beach, CA distribution center. Ms. Gordon further argues that Defendants failed to provide evidence that the exercise of jurisdiction would be unreasonable. In the alternative, Ms. Gordon requests leave to conduct jurisdictional discovery.

On August 20, 2026, CSI replied.

Ms. Gordon meets her burden of proving that Cosmetic Specialties, Inc. purposefully availed itself of the California market and that her claims arise from CSI's contacts with California. The motion to quash service of summons and the complaint is denied.¿

Ms. Gordon

is ordered to give notice.¿

II.

Evidentiary Objections

Defendant's objections:

Sustained:

1. Horowitz

Declaration Ex. 4 – Deposition of Ronald Grexa taken in Mokhtarian, et al. v. Alfred Dunhill Americas, LLC, et al., JCCP Case No. 4674, in the Superior Court of the State of California for the County of Los Angeles, taken on December 8, 2022 and Exhibits: The deposition testimony is inadmissible hearsay. This deposition testimony is an out of court statement introduced for the truth of the matters¿asserted and¿therefore is hearsay.¿As the proponent of the evidence, the burden¿is on plaintiff to¿establish¿an applicable hearsay exception. Ms. Gordon¿provides no evidence to support the application of a hearsay exception¿especially as the deposition appears to be a discovery deposition.¿(Berroteran v. Superior Court¿(2022) 12 Cal.5th 867, 895 [“The party urging admission of deposition testimony bears the burden of rebutting the general rule by submitting appropriate information justifying the admission of designated deposition testimony.”].) Accordingly, the objection is sustained.

Objections to Exhibits 7-9 are sustained for the same reasons as the objection to exhibit 4.

Overruled:

1. Horowitz

Declaration, Ex. 3 – Elizabeth Marian Gahagan's Declaration, dated August 11, 2026: CSI objects to Ms. Gahagan's declaration and the attached exhibits on the grounds that they lack foundation and are hearsay. However, paragraph 9 of Ms. Gahagan's declaration sets forth the foundation for a business records exception under Evidence Code section 1271. In addition, paragraph 1 lays a foundation for her knowledge of the company's record keeping practices. The court also notes that CSI's reference to the court's finding in Fowler v. Merle Norman Cosmetics, Inc., et al., case no. 21STCV2355, is not persuasive because the hearsay ruling dealt with deposition testimony, not a

declaration. The decision is not binding on this court. Accordingly, the court overrules the objection.

III.

Judicial Notice

CSI requests judicial

notice of this court's November 6, 2024 Order granting CSI's motion to quash service of process in Fowler v. Merle Norman Cosmetics, Inc., et al., LASC case no. 21STCV23555 and the January 7, 2025 Order denying plaintiffs' motion for reconsideration.

The court notes that

although it may take judicial notice of the documents pursuant to Evidence Code section 452, the documents are only judicially noticeable to show their existence. The facts and findings and the truth of the statements contained within the documents are not judicially noticeable. (See Lockley v. Law Office of Cantrell, Green, Pekich, Cruz & McCort (2001) 91 Cal.App.4th 875, 885; Arce v. Kaiser Foundation Health Plan, Inc. (2010) 181 Cal.App.4th 471, 483.) Accordingly, while judicial notice of their existence is taken, they are not received in evidence.

IV.

Discussion

A.

Legal Standard

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defendant may move to quash service of summons on the ground of lack of jurisdiction of the court over them. (Code Civ. Proc., § 418.10, subd. (a)(1).)

The court may dismiss without prejudice the complaint in whole, or as to that defendant, when dismissal is made pursuant to Section 418.10. (Code Civ. Proc., § 581, subd. (h).)¿

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court of this state may exercise jurisdiction on any basis not inconsistent with the Constitution of this state or of the United States." (Code Civ. Proc., § 410.10.) "The Due Process Clause protects an individual's liberty interest in not being subject to the binding judgments of a forum with which he

has established no meaningful 'contacts, ties, or relations.'" (Burger King Corp. v. Rudzewicz (1985) 471 U.S. 462, 471 – 472.) A state court may not exercise personal jurisdiction over a party under circumstances that would offend "traditional notions of fair play and substantial justice." (Asahi Metal Industry Co., Ltd., v. Superior Court of California, Solano County (1987) 480 U.S. 102, 113.)

When a defendant moves to quash service of process on jurisdictional grounds, the plaintiff has the initial burden of demonstrating facts justifying the exercise of jurisdiction. (Jayone Foods, Inc. v. Aekyung Industrial Co. Ltd. (2019) 31 Cal.App.5th 543, 553 (Jayone).) Once facts showing minimum contacts with the forum state are established, the defendant has the burden to demonstrate the exercise of jurisdiction would be unreasonable. (Ibid.) "The plaintiff must provide specific evidentiary facts, through affidavits and other authenticated documents, sufficient to allow the court to independently conclude whether jurisdiction is appropriate. [Citation.] The plaintiff cannot rely on allegations in an unverified complaint or vague and conclusory assertions of ultimate facts. [Citation.]" (Strasner, supra, 5 Cal.App.5th at p. 222.)

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defendant is subject to a state's general jurisdiction if its contacts "are so continuous and systematic as to render [it] essentially at home in the forum State." (Daimler AG v. Bauman (2014) 571 U.S. 117, 127.) A nonresident defendant may be subject to the specific jurisdiction of the forum "if the defendant has purposefully availed himself or herself of forum benefits [citation], and the 'controversy is related to or 'arises out of' a defendant's contacts with the forum.' [Citations.]" (Vons Companies, Inc. v. Seabest Foods, Inc. (1996) 14 Cal.4th 434, 446.) This test does not require a "causal relationship between the defendant's in-state activity and the litigation." (Ford Motor Co. v. Montana Eighth Judicial District Court (2021) 592 U.S. 351, 362 (Ford)) The "arise out" of standard "asks about causation," but "relate to" does not. (Ibid.) "[W]hen a corporation has 'continuously and deliberately exploited [a State's] market, it must reasonably anticipate being hauled into [that State's] court[s] to defend actions 'based on' products causing injury there.'" (Id. at p. 364.)

B.

General Jurisdiction

General jurisdiction is

not at issue here. Ms. Gordon does not dispute that the court lacks general jurisdiction over CSI.^[1]

Accordingly, the court analyzes whether Ms. Gordon presents evidence that CSI is subject to specific jurisdiction in California.

C.

Specific Jurisdiction

A court may

exercise specific jurisdiction over a plaintiff when three elements are satisfied: "(1) 'the defendant has purposefully availed himself or herself of forum benefits' [citation]; (2) 'the controversy is related to or 'arises out of' [the] defendant's contacts with the forum' [citation]; and (3) 'the assertion of personal jurisdiction would comport with 'fair play and substantial justice'" [citation.]" (Pavlovich v. Superior Court (2002) 29 Cal.4th 262, 269.)

Here, CSI argues

that there is no factual basis to establish specific jurisdiction because CSI has not purposefully availed itself of doing business in California and the controversies at issue are not related to CSI's forum-related contacts. (Motion at p. 10 ["plaintiff here has failed to adduce allegations that support the necessary "connection" described in Bristol-Myers, that is, a connection between the foreign corporation's activities within this state and the underlying controversy in this action (i.e., whether Marshall B. Stone used an asbestos-containing product sold or supplied by CSI and that such use was a cause of plaintiff's mesothelioma). But moreover, plaintiff has also failed to identify evidence that CSI engaged in activities through which it purposefully availed itself of the benefits of doing business in California and that those activities relate to the specific products from which plaintiff's claimed injury resulted."].)

1.

Purposeful Availment

Purposeful availment "focuses

on the defendant's intentionality. This prong is satisfied when the defendant

purposefully and voluntarily directs his activities toward the forum so that he should expect, by virtue of the benefit he receives, to be subject to the court's jurisdiction based on his contacts with the forum." (Pavlovich, supra, 29 Cal.4th at p. 269.)

Here, Ms. Gordon argues that

Defendant purposefully availed itself of California by "maintain[ing] a distribution center in Long Beach, California for roughly a decade, [telling] the market, in its own published advertising across at least five years, that it could supply talc 'from its Long Beach, California distribution centers,' [storing] its exclusive supplier's talc there, and [selling] and deliver[ing] that talc to a Los Angeles cosmetics manufacturer, Merle Norman, which took possession at the Long Beach dock." (Opposition at p. 7) Ms. Gordon relies upon Defendant's responses to special interrogatories from a prior matter, *Fowler v. Merle Norman Cosmetics, Inc., et al.*, LASC case no. 21STCV23555, to support her purposeful availment argument. (Horowitz Decl., Ex. 5, at p. 2.) In response to special interrogatory number one, which asks whether CSI distributed talc to Merle Norman Cosmetics in California between 1972 and 2018, Defendant states "that on occasion between October 1998 and January 2008, CSI sold cosmetic talc to Merle Norman that was shipped to a Long Beach, CA warehouse where the customer picked up its purchases." (Ibid.) CSI provided this same response to special interrogatories Nos. 2-5, which sought further information regarding CSI's shipments of talc distributed to Merle Norman between 1972 and 2018. (Id., at pp. 2-4.) CSI has not objected to this evidence in its reply.

Ms. Gordon also cites

the prior deposition testimony of Ronald Grexa, CSI's corporate representative. The testimony is inadmissible. Ms. Gordon submits a CSI Purchase Order dated June 10, 2002, indicating that IMIFabi (Diana) LLC shipped FOB Diana, NY 30,000 50-pound bags of 1625 B.C. Talc and 14,000 50-pound bags of 1623 B.C. Talc. (Id., Exh. 6.)

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manufacturer's mere knowledge of the likelihood that a product will enter a state is insufficient, without more, to establish personal jurisdiction over that Defendant. (Jayone, supra, 31 Cal.App.5th 543, 559. ["In the products liability context, merely placing a product into the stream of commerce, even with knowledge that the product might enter the forum state, is not a sufficient basis for personal jurisdiction over a nonresident defendant.]; *Dow Chemical Canada ULC v. Superior Court* (2011) 202 Cal.App.4th 170, 179 ["It

is not sufficient for jurisdiction in this case that the defendant Dow might have predicted or known that its products would reach California.”].) Instead, the relevant inquiry is whether the defendant manufacturer attempted to purposefully “serve, directly or indirectly, the market for its product” in California. (Jayone, supra, 31 Cal.App.5th 543, 559.)

Here, Ms.

Gordon has established sufficient evidence of CSI’s purposeful availment of California. Defendant’s verified interrogatory responses from Fowler v. Merle Norman Cosmetics, Inc., et al., LASC case no. 21STCV23555, are sufficient to show that Defendant intentionally directed its products to California. (Horowitz Decl., Ex. 5, at p. 2 [“that on occasion between October 1998 and January 2008, CSI sold cosmetic talc to Merle Norman that was shipped to a Long Beach, CA warehouse where the customer picked up its purchases.”].) In its reply, Defendant primarily objects to Ms. Gordon’s evidence, which was addressed above, and references the judicially noticed prior orders in Fowler v. Merle Norman Cosmetics, Inc., et al., in support of denial. The court finds CSI sold and shipped talc to California where it was purchased or picked up by a California manufacturer, specifically the manufacturer of the product at issue.

Accordingly, Ms.

Gordon has satisfied her burden to show that CSI purposefully availed itself of the California market.

2.

Relatedness

The

relatedness inquiry is not strictly causal and instead focuses on whether the cause of action “rises out of or has a substantial connection with a business relationship defendant has purposefully established with California.” (Vons Companies, Inc. v. Seabest Foods, Inc. (1996) 14 Cal.4th 434, 448.)

Ms. Gordon argues

that CSI “systematically served a market like California for the very product that the plaintiff alleges injured her... the talc grades CSI supplied to Merle Norman are the talc grades Merle Norman’s formula cards show in the sheer face

powder Carole used, CSI delivered that talc in California to the California plant that made the powder, and CSI supplied it for use in consumer cosmetics.” (Opp., at pp. 11-12.) Ms. Gordon largely relies on the same facts discussed above to establish the relatedness prong.

First, Ms. Gordon

puts forth her own deposition testimony from this matter in which she states that she used the Merle Norman sheer face powder daily from 1956 until 2026; Ms. Gordon bought the powder from Merle Norman representatives and stores in California. (Horowitz Decl., Ex. 1, at 46:11–48:9, 51:5–52:10; Ex. 2, at 217:6–8, 239:14–240:25.)

Second, to

establish that Merle Norman is a California manufacturer, Ms. Gordon presents Ms. Gahagan’s declaration in which she states that both Merle Norman’s corporate headquarters and sole manufacturing facility are located in Los Angeles. (Id., Ex. 3, ¶¶ 3-4 [“Merle Norman was founded in Santa Monica, California, in 1931, and operates in Los Angeles, CA...Merle Norman[] has its corporate headquarters and manufacturing facility at 9130 Bellanca Ave, Los Angeles, California...Merle Norman’s business records do not show a manufacturing facility outside of California.”].)

Ms. Gordon then

points to Merle Norman’s formula cards, bills of material, and the Fabi LLC Certificates of Analysis attached as exhibits to Ms. Gahagan’s declaration, in which the talc in Merle Norman’s sheer face powder is identified as 1625 Talc BC (until 2013) and 3355 USP/EP/JP Talc (from 2013), both supplied by CSI. (Id., Ex. 3, at ¶¶ 5–7 and MNC-Gordon000003–000014, MNC-Gordon000051–000053 [“Merle Norman’s records show that from 2000 to date, IMI Fabi LLC and Cosmetic Specialties, Inc. has supplied talc used by Merle Norman in [its] sheer face powder...1625 Talc BC was supplied by IMI Fabi LLC and Cosmetic Specialties, Inc...3355 USP PE JP Talc was supplied by IMI Fabi LLC and Cosmetic Specialties, Inc.”].)

Lastly, Ms. Gordon

once more directs the court’s attention to CSI’s prior interrogatory responses from Fowler v. Merle Norman Cosmetics, Inc., et al., LASC case no. 21STCV23555, Mr. Grexa’s inadmissible deposition testimony, and the June 2002 Purchasing Order, arguing that the documents show CSI sold cosmetic talc to Merle Norman, who picked it up from CSI’s Long Beach warehouse. (Id.,

Ex. 5, at pp. 2-4; Ex. 4, at 62:17 68:16, 73:15–22; Ex. 6.) Ms. Gordon additionally cites her malignant pleural mesothelioma diagnosis in February 2025, in California, where she has been a lifelong resident. (Id., Ex. 1, at 13:6–14:2.)

In reply,

Defendant primarily objects to Ms. Gordon's evidence, which was addressed above, and references the judicially noticed prior orders in *Fowler v. Merle Norman Cosmetics, Inc., et al.*, in support of denial. (Reply at pp. 2-4.)

The court finds

that Ms. Gordon has provided sufficient evidence that her claims arise out of or relate to CSI's contacts in California. Specifically, Ms. Gordon presents sufficient evidence that the product at issue in this case, Merle Norman sheer face powder, contained talc (1625 Talc BC and 3355 USP/EP/JP Talc) supplied by CSI. Ms. Gordon put forth the declaration of Merle Norman's corporate representative, Ms. Gahagan, who states that per the company's records, "from 2000 to date, IMI Fabi LLC and Cosmetic Specialties, Inc. has supplied talc used by Merle Norman in [its] sheer face powder." (Horowitz Decl., Ex. 3, at ¶¶ 5–7 and MNC-Gordon000003–000014, MNC-Gordon000051–000053.) Specifically, IMI Fabi LLC and CSI supplied Merle Norman with 1625 Talc BC and 3355 USP PE JP Talc. (Ibid.) The attached formula cards dating from 1991 to 2021 indicate that Talc #1625 BC and IMIFABI 3355 USP EP JP Talc BC have been used in Merle Norman's sheer face powder. (Id, MNC-Gordon000001-000005.) In addition, CSI's prior interrogatory responses from *Fowler v. Merle Norman Cosmetics, Inc., et al.*, LASC case no. 21STCV23555, indicate that CSI sold cosmetic talc to Merle Norman between 1998 to 2008 and that Merle Norman picked up the purchase from CSI's Long Beach, California warehouse. (Id., Ex. 5, at p. 2 ["on occasion between October 1998 and January 2008, CSI sold cosmetic talc to Merle Norman that was shipped to a Long Beach, CA warehouse where the customer picked up its purchases."].)

Ms. Gordon also

presents admissible evidence that she purchased the products at issue in California. (Id., Ex. 2, at 240:14-25 ["Q: Do you know where you purchased this particular can or container of sheer face powder? A: Probably – probably from somebody in – I think she lived in Thousand Oaks or – she was a representative of the company...Q: How did you become introduced...A: Well, I had a representative in Westlake that I went to, a store. And then she closed the store and moved to, I think, Oxnard. So then I was getting things in the mail from her."].)

Accordingly, Ms.

Gordon presented sufficient evidence that CSI “systematically served a market in [the forum state] for the very [products] that the plaintiffs allege malfunctioned and injured them in those States.” (Ford, *supra*, 592 U.S. 351, 365.)

3.

Fair Play and Substantial Justice

“In making

this determination [as to whether the assertion of jurisdiction would comport with fair play and substantial justice], the court must consider the burden on the defendant, the interests of the forum State, and the plaintiff's interest in obtaining relief. It must also weigh in its determination the interstate judicial system's interest in obtaining the most efficient resolution of controversies; and the shared interest of the several States in furthering fundamental substantive social policies.” (Snowey v. Harrah's Entertainment, Inc. (2005) 35 Cal.4th 1054, 1070.)

Ms. Gordon argues

in opposition that “CSI's motion offers argument on this point but no evidence at all.” (Opp., at p. 12.) Ms. Gordon contends that the exercise of jurisdiction is reasonable because the action is already pending in this court for the same issue, she is a terminally-ill patient whose evidence, witnesses, and injury all present in California, and that CSI should have reasonably anticipated being sued here due to its purposeful availment of the California market. (Ibid.)

The court

agrees with Ms. Gordon's contentions. While CSI states that it disputes whether it would be fair and reasonable for this Court to exercise personal jurisdiction over it, CSI does not offer any specific arguments for its contention. (Mot., at p. 11.)

The

court finds that factors weigh in favor of CSI being subject to personal jurisdiction in California. Ms. Gordon alleges he was exposed to asbestos in California. California has an interest in resolving this dispute in California because Ms. Gordon sustained her injuries in

California. Additionally, other Defendants to this action either reside in California or are properly sued in California. The interstate judicial system has an interest in allowing this matter to stay in California because it is most efficient to resolve Ms. Gordon's dispute with CSI in California together with the other Defendants. The factors thus weigh in favor of a finding that this court's assertion of jurisdiction comports with fair play and substantial justice.

V.

Conclusion

Ms. Gordon meets her burden of proving that Cosmetic Specialties, Inc. purposefully availed itself of the California market and that her claims arise from CSI's contacts with California. CSI's motion to quash service of summons and the complaint is denied.¿

Ms. Gordon is ordered to give notice.¿¿

[1] It is undisputed that CSI is a New Jersey Corporation with its principal place of business in New Jersey. (Grexa Decl., ¶¶ 3-4.)